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English 240

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Legal Processing Fluency

Legal writing has two major categories: legal drafting and legal analysis. Legal drafting describes the process with which a person creates a legally binding contract. Legal analysis occurs in two different forms: predictive analysis or persuasive analysis. Predictive analysis appears when the author attempts to predict the ruling party's decision. Example of predictive analysis documents are legal briefs and motions. Persuasive analysis is written with the purpose of persuading the ruling party to rule in favor of the author's party. Example of persuasive analysis documents are orders and memoranda. The subcategories of legal analysis demonstrate both similarities and differences, which can be seen with grammar trees.

The sentences used for examination originated from the case: Nissan Motors v. Nissan Computer. This case involves Uzi Nissan, the founder of Nissan Computer Corporation. He acquired the domain name: www.nissan.com in 1994. Nissan Motors was interested in this domain name five years after Nissan Computer acquired it. Nissan Motors then sued Nissan Computer for trademark dilution.

A trademark gives ownership of a mark to a person or company. This company can allow or disallow anyone from using it. If their mark loses "uniqueness" because of someone else's

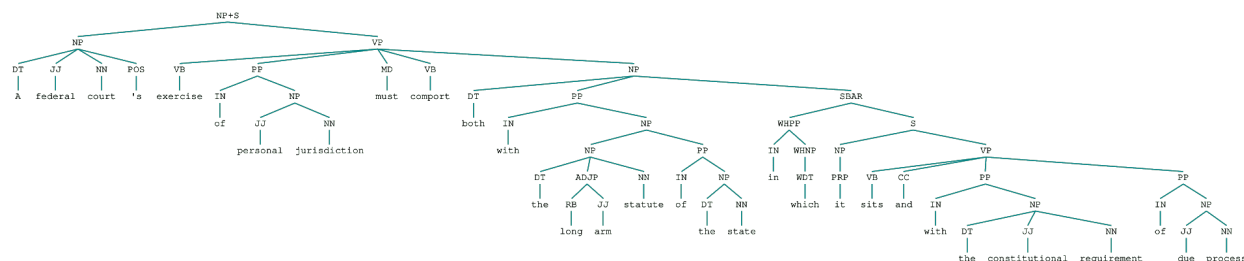
actions, then the trademark holder can sue for trademark dilution. Nissan Motors argued that Nissan Computer did just that and took legal action against Nissan Computer. Therefore, the plaintiff is Nissan Motors and the defendant is Nissan Computer.

Nissan Motors registered the name “Nissan” as their trademark in 1995. Nissan Computer registered their trademark in association with the founder’s last name “Nissan” in 1980. The word “Nissan” means the 7th month of the Jewish calendar. This word was used in historical contexts prior to Nissan Motors’ existence. Therefore, the courts ruled against Nissan Motors because a general word cannot be trademarked.

Moreover, the courts also ruled against the plaintiff because the defendant’s use of the word “Nissan” did take away any of their customers. All it did was merely confuse and misdirect the consumer trying to find the correct domain address for the car company. Therefore, Nissan Computer did nothing wrong and was a victim of domain hijacking. Domain hijacking is when a large company sues a smaller company or person for their domain name. The court ordered that Nissan Motors’ domain name was “nissanusa” and Nissan Computer’s domain name was “nissan”.

During this lawsuit, several motions were created and submitted to the court. A motion is a request or proposal to the court for movement or direction. For instance, a “motion for summary judgement” requests the judge to rule on either the case or part of the case. This allows the case to continue if a dispute cannot be settled among the plaintiff and the defendant. A motion is typically drafted by the representing lawyers and sent to the judge.

The defendant submitted a “Motion to Dismiss for Lack of Personal Jurisdiction”. This asks the court to dismiss the case because the court doesn’t have any authority over the



defendant. In other words, the lawsuit needs to be moved to another court. Each sentence from this document was coded into a grammar tree. The grammar trees allow a visual representation of legal writing and syntax.

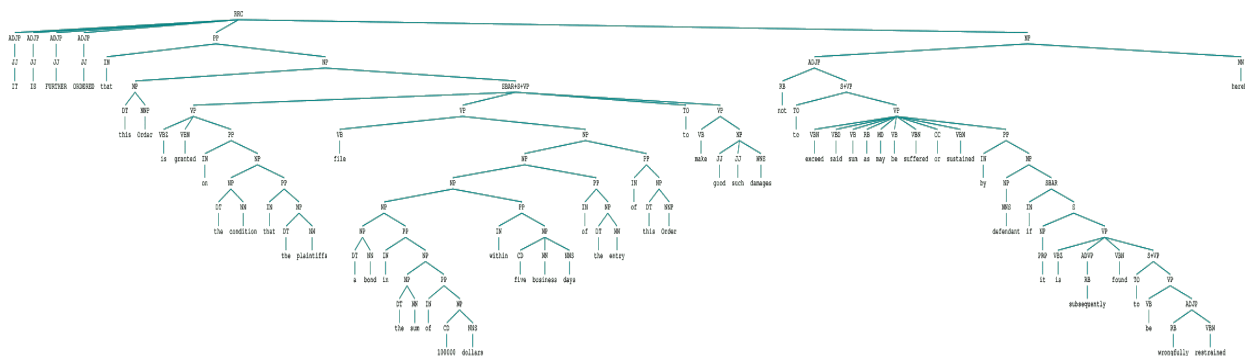
Above is an extremely complex tree diagram of the first sentence from the defendant’s motion. This sentence contains 29 words 5 nouns, 5 prepositional phrases, 3 verbs, 7 noun phrases, and 5 prepositions, and a clause. Not only is this a long tree, but it’s also 8 links deep. Many of the motion trees look similarly complex to this.

The question has to be asked: why are these trees so complex? What is the reason for lawyers using ambiguous nouns, multiple clauses, splitting of infinitives, and separating the pronouns far from their antecedents? Lawyers are praised for their spoken words and writing; why is it messy and hard to follow?

The answer is lawyers write in a defensive manner. They use their words to ensure that misconstruction doesn’t occur. However, they do this in a circumlocutory fashion, which makes it hard for laymen to read. For example, if a lawyer writes about the Ten Commandments they write about it as if no one has ever heard of them. Then they proceed to discuss a long drawn-out explanation for something the audience already knows.

Moreover, their spoken words often translates to their written language; however, discussing an issue with someone is different than writing. They do not convey the same meaning because talking incorporates body language and written words do not, only the words are open for interpretation. Therefore, when lawyers do this they often write truism claims in the form of clauses. By the time a layman starts a sentence, he or she is bombarded with clauses, causing the laymen confusion about the meaning of the sentence.

The language for an order is worse. First, an order is a proclamation made by a judge. For example, a judge can issue an order for a hearing, trial, or other court proceedings. This sets the timetable for a lawsuit. Orders typically come after a motion, but not always, and are written by a judge. The examined order was the order “Denying Defendant’s Motion to Dismiss; and Granting Plaintiff’s Motion for Preliminary Injunction”.



Above, is an even more complex tree diagram of a sentence from the order. This sentence contains 59 words, 13 nouns, 10 prepositions, 13 verbs, 19 noun phrases, and several clauses. This diagram is even more complex than the motion. It is wider, deeper, and contains more elements. The question now has to be asked: what makes an order’s sentences more complex than a motion’s?

The answer: time and practice writing legal documents for X amount of years as a lawyer. A judge has had more practice writing in this circumlocutory way such that it has become a skill. They are unaware that they are writing the same interminable phrases, just with ever more complexity. This would result in a wider and deeper tree. Therefore, sentences from orders differ from sentences in motions by length and complexity because of the author.

Overall, the law affects everyone. When someone breaks a law they are not excused from it because they couldn't read or understand the legal language. Knowing this, lawyers have an obligation to write in such a way that ordinary laymen can read it. If they continue to write in legal jargon then people will not be informed of their rights. Therefore, the lawyers who make the laws are held responsible for a layman's understanding of this essential knowledge.

For further analysis on this subject, one could symbolize these sentences into predicate logic notation and determine what part of the sentence is essential and what is not. The logic of a lawyer's argument would stay the same because the logic would still follow if written correctly. After discovering and discarding unnecessary information to form the notation then it could be converted back into a sentence and checked for processing fluency. If the sentence were easy to read, multitudes of legal text could be converted into more understandable language.

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